COMMERCIAL LEASE AGREEMENT

Magnolia Market Lofts | Buffalo, NY

Landlord	Magnolia Market Lofts Owner LLC
Tenant	Northstar Design Studio
Premises	Suite 12120, Magnolia Market Lofts
Lease Date	April 23, 2021
Term	10 years

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Term. The term of this Lease shall be 10 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 27 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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8. Alterations. Tenant shall not make any alterations costing more than $467,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Renewal Option. Tenant shall have 15 option(s) to renew for 4 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Fire alarm panel upgrade	Interior	12/13/24	Q1 2026	$710,000	$705,491	Deferred
Fence replacement	Site	01/20/26	Q1 2026	$728,000	$310,219	Bidding
Parking lot resurfacing	Energy	03/18/26	Q4 2026	$790,000	$153,707	In progress
Amenity renovation	Site	10/16/23	Q2 2026	$128,000	$72,769	Complete
Roof replacement - Bldg D	Life Safety	01/14/24	Q2 2026	$150,000	$91,554	In progress
ADA compliance	Site	08/29/23	Q3 2027	$185,000	$151,618	In progress
ADA compliance	Building	12/10/24	Q1 2027	$80,000	$53,583	Approved
Lobby renovation	Interior	01/18/23	Q1 2026	$460,000	$122,788	Approved
Signage / monument	Interior	02/03/23	Q4 2027	$258,000	$127,087	In progress
Signage / monument	Energy	11/28/25	Q4 2026	$798,000	$142,141	Deferred
Door hardware	Interior	10/16/25	Q2 2025	$284,000	$150,950	Complete
LED lighting retrofit	Life Safety	05/08/24	Q4 2027	$519,000	$34,394	In progress
Unit interior upgrades	Site	02/26/23	Q3 2025	$20,000	$4,027	Bidding
Signage / monument	Site	12/31/24	Q4 2027	$323,000	$261,258	Bidding
Lobby renovation	Site	03/23/25	Q4 2027	$303,000	$233,097	Approved
LED lighting retrofit	Building	03/19/25	Q2 2027	$208,000	$58,901	Approved
Exterior paint	Energy	09/07/24	Q4 2027	$110,000	$86,457	Deferred
Fence replacement	Interior	02/13/24	Q4 2025	$400,000	$289,572	Complete
Pool resurfacing	Interior	12/19/23	Q1 2025	$716,000	$219,973	Complete
Water heater replacement	Energy	03/17/25	Q4 2025	$698,000	$332,947	In progress
Parking lot resurfacing	Building	10/08/25	Q4 2026	$730,000	$740,934	Bidding
Unit interior upgrades	Building	10/02/25	Q4 2027	$474,000	$104,180	Bidding
Parking lot resurfacing	Energy	02/21/23	Q2 2027	$28,000	$17,288	Deferred
Elevator modernization	Site	07/15/26	Q3 2025	$34,000	$9,325	Deferred
Water heater replacement	Site	06/12/24	Q4 2026	$648,000	$392,530	Deferred
Pool resurfacing	Interior	10/28/25	Q3 2027	$407,000	$372,312	Complete
Exterior paint	Building	05/26/26	Q4 2026	$531,000	$83,178	Approved
Amenity renovation	Interior	07/20/25	Q1 2026	$527,000	$361,899	Bidding
Roof replacement - Bldg C	Interior	05/10/23	Q3 2026	$525,000	$309,603	Approved
Door hardware	Interior	01/09/24	Q3 2027	$25,000	$15,296	Complete
Landscape / irrigation	Interior	02/06/23	Q1 2026	$776,000	$129,066	In progress
Amenity renovation	Interior	10/05/24	Q2 2026	$334,000	$40,691	Bidding
Parking lot resurfacing	Interior	03/07/23	Q2 2025	$587,000	$87,349	Deferred
Roof replacement - Bldg D	Interior	08/19/23	Q2 2025	$236,000	$84,185	In progress
Storefront glazing	Building	11/26/25	Q4 2027	$853,000	$759,997	Complete
Storefront glazing	Energy	01/08/26	Q4 2026	$402,000	$377,559	In progress
Signage / monument	Building	12/30/24	Q3 2027	$589,000	$209,899	Deferred
Lobby renovation	Energy	11/26/24	Q1 2025	$295,000	$94,354	Approved
Water heater replacement	Site	11/04/26	Q2 2025	$176,000	$35,494	In progress
Elevator modernization	Energy	06/28/25	Q1 2027	$685,000	$457,100	Bidding
Sewer line repair	Site	06/03/24	Q2 2025	$709,000	$315,046	Complete

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15. Term. The term of this Lease shall be 4 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 46 months of Base Rent, to be held without interest. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Alterations. Tenant shall not make any alterations costing more than $8,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Roof replacement - Bldg A	Site	04/27/26	Q1 2026	$643,000	$328,336	Bidding
Fence replacement	Interior	03/23/23	Q4 2027	$236,000	$97,095	In progress
Fire alarm panel upgrade	Life Safety	08/18/26	Q2 2025	$14,000	$11,441	Bidding
Storefront glazing	Energy	06/28/26	Q4 2026	$418,000	$170,791	Deferred
Unit interior upgrades	Interior	11/09/24	Q2 2026	$483,000	$335,386	Bidding
Lobby renovation	Building	12/25/23	Q1 2025	$73,000	$4,298	In progress
Exterior paint	Interior	09/26/25	Q4 2025	$869,000	$673,714	Approved
Fire alarm panel upgrade	Energy	05/09/25	Q1 2027	$531,000	$214,639	Approved
Storefront glazing	Interior	12/14/25	Q2 2025	$843,000	$698,000	Deferred
Unit interior upgrades	Life Safety	08/22/25	Q3 2025	$521,000	$122,718	Bidding
Unit interior upgrades	Interior	01/06/25	Q2 2026	$126,000	$6,041	Deferred
Parking lot resurfacing	Building	10/25/23	Q1 2027	$70,000	$56,954	Complete
Parking lot resurfacing	Energy	02/21/26	Q1 2027	$825,000	$655,056	Bidding
Roof replacement - Bldg A	Energy	05/03/25	Q2 2027	$793,000	$554,254	Approved
Roof replacement - Bldg A	Life Safety	03/15/24	Q2 2025	$398,000	$272,475	Deferred
Pool resurfacing	Life Safety	11/27/26	Q4 2025	$604,000	$115,008	Bidding
Security camera upgrade	Building	01/27/23	Q4 2025	$34,000	$15,131	Approved
Unit interior upgrades	Interior	01/08/25	Q3 2025	$349,000	$70,196	In progress
Door hardware	Interior	03/04/23	Q2 2026	$882,000	$343,787	Bidding
ADA compliance	Energy	01/29/25	Q2 2027	$303,000	$248,650	In progress
Amenity renovation	Energy	06/21/23	Q3 2027	$551,000	$537,697	Deferred
Parking lot resurfacing	Energy	04/09/24	Q4 2026	$863,000	$706,225	Deferred
Fence replacement	Energy	03/09/26	Q1 2026	$686,000	$539,817	Bidding
ADA compliance	Site	10/30/25	Q1 2027	$768,000	$357,214	Complete
Storefront glazing	Site	10/20/25	Q2 2025	$862,000	$460,994	Approved
ADA compliance	Building	08/14/23	Q1 2027	$873,000	$413,720	Deferred
Signage / monument	Life Safety	08/26/24	Q3 2026	$770,000	$184,260	Bidding
ADA compliance	Energy	07/05/26	Q2 2026	$655,000	$573,433	Complete
Water heater replacement	Life Safety	08/28/24	Q2 2025	$899,000	$242,902	Complete
Exterior paint	Energy	07/18/26	Q3 2025	$55,000	$16,818	Deferred
ADA compliance	Energy	08/21/24	Q1 2027	$327,000	$304,186	Deferred
Water heater replacement	Building	01/12/26	Q1 2027	$514,000	$443,256	Deferred
Signage / monument	Site	08/05/23	Q2 2025	$39,000	$17,482	Deferred
Pool resurfacing	Life Safety	09/20/25	Q3 2025	$751,000	$199,974	Bidding
Security camera upgrade	Energy	03/14/24	Q4 2025	$582,000	$481,704	Complete
Roof replacement - Bldg C	Life Safety	04/27/23	Q1 2025	$552,000	$148,517	In progress
Lobby renovation	Life Safety	01/20/24	Q4 2027	$725,000	$626,951	In progress
Security camera upgrade	Building	04/12/25	Q4 2026	$601,000	$517,021	Complete
Signage / monument	Energy	07/08/24	Q1 2025	$100,000	$78,671	Complete
Unit interior upgrades	Interior	09/10/25	Q3 2025	$866,000	$657,180	In progress
ADA compliance	Life Safety	02/01/26	Q1 2026	$24,000	$6,943	Approved

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22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Renewal Option. Tenant shall have 23 option(s) to renew for 3 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

28. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Capital Project Schedule

Project	Category	Start	Completion	Budget	Spent to Date	Status
Exterior paint	Interior	09/28/23	Q3 2025	$649,000	$31,884	In progress
Water heater replacement	Site	03/02/25	Q4 2026	$487,000	$356,858	Deferred
Storefront glazing	Energy	12/12/26	Q2 2025	$425,000	$73,227	Deferred
ADA compliance	Interior	12/28/24	Q4 2027	$151,000	$157,957	Approved
Elevator modernization	Building	06/14/23	Q3 2027	$445,000	$48,804	Bidding
Water heater replacement	Interior	08/11/24	Q3 2027	$575,000	$207,647	Deferred
Signage / monument	Site	02/27/26	Q4 2027	$441,000	$207,302	Complete
Security camera upgrade	Interior	12/30/25	Q4 2025	$463,000	$53,564	Approved
Signage / monument	Site	01/08/23	Q4 2027	$173,000	$94,244	Approved
Water heater replacement	Energy	11/23/25	Q3 2026	$550,000	$151,268	Complete
Water heater replacement	Site	08/28/25	Q3 2026	$86,000	$61,920	Complete
Fire alarm panel upgrade	Site	01/12/24	Q4 2025	$353,000	$365,612	Approved
Roof replacement - Bldg C	Life Safety	10/03/26	Q2 2026	$416,000	$109,930	Approved
Signage / monument	Life Safety	04/23/26	Q4 2025	$133,000	$109,654	Complete
ADA compliance	Site	02/14/23	Q1 2025	$8,000	$4,498	Deferred
Sewer line repair	Life Safety	04/09/23	Q1 2025	$206,000	$23,522	Approved
Security camera upgrade	Energy	02/24/23	Q3 2025	$125,000	$94,576	Complete
Exterior paint	Building	02/22/23	Q4 2027	$73,000	$51,296	In progress
Landscape / irrigation	Energy	07/12/25	Q1 2026	$372,000	$353,882	Deferred
Door hardware	Building	03/30/26	Q2 2025	$877,000	$413,800	In progress
Unit interior upgrades	Building	09/08/26	Q2 2026	$736,000	$160,223	Bidding
Pool resurfacing	Energy	02/26/24	Q2 2025	$819,000	$253,421	Approved
Elevator modernization	Site	04/05/25	Q2 2026	$317,000	$259,637	Approved
Security camera upgrade	Energy	01/26/25	Q3 2027	$696,000	$128,815	Approved
Amenity renovation	Interior	02/06/24	Q3 2027	$199,000	$116,584	Bidding
Lobby renovation	Life Safety	03/08/26	Q1 2027	$329,000	$122,140	Deferred
Landscape / irrigation	Building	03/15/26	Q3 2027	$589,000	$562,370	In progress
ADA compliance	Site	10/18/24	Q3 2026	$506,000	$256,940	Deferred
Unit interior upgrades	Site	12/28/23	Q3 2026	$614,000	$591,545	In progress
Fence replacement	Life Safety	11/30/23	Q1 2027	$708,000	$500,010	Deferred
Exterior paint	Interior	03/04/23	Q4 2026	$250,000	$24,531	In progress
Parking lot resurfacing	Energy	12/09/26	Q1 2025	$799,000	$193,008	In progress
Lobby renovation	Interior	01/10/24	Q2 2027	$296,000	$228,522	In progress
ADA compliance	Site	04/03/25	Q4 2027	$668,000	$50,272	Complete
ADA compliance	Interior	07/29/24	Q2 2027	$279,000	$293	Complete
Amenity renovation	Site	06/07/24	Q3 2027	$514,000	$307,350	In progress
Lobby renovation	Energy	11/21/26	Q4 2027	$475,000	$435,131	Deferred
ADA compliance	Life Safety	04/15/25	Q1 2027	$71,000	$4,283	In progress
Lobby renovation	Energy	12/13/24	Q4 2025	$818,000	$296,335	In progress
Door hardware	Life Safety	09/03/24	Q1 2026	$817,000	$216,527	Complete
Landscape / irrigation	Interior	04/03/23	Q4 2027	$468,000	$231,958	Deferred
HVAC replacement	Energy	11/09/25	Q1 2025	$509,000	$497,280	Approved
Water heater replacement	Life Safety	12/02/26	Q2 2025	$696,000	$189,484	Bidding

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Magnolia Market Lofts Owner LLC

By: Fatima Nguyen Title: Manager Date: 04/23/2021

_____

Northstar Design Studio

By: Elena Evans Title: Manager Date: 04/23/2021

Exhibit A - Property

Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498. Parcel containing approximately 10.63 acres, together with all improvements thereon.

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